1951	**F** FAR EASTERN DEPARTMENT JAPAN	FJ 1022/275 53

FROM

Mr. Jamieson (Washington)
To
Mr. Johnston.

No. 1076/187/51.

Dated 28th March 1951.

Received in Registry— 17th April 1951.

Gives various points discussed with Mr. Allison concerning implications of the conclusion of a Peace Treaty without Russian participation.

Refers to F.O. letter of 22nd March (FJ 1022/143)

Copied Moscow & Tokyo.

REFERENCES

FJ 1021/236.

MINUTES

27/4.

(Print)

(How disposed of)

(Action completed)	(Index)
SKC 21/4	26/6/51

39318

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FAR EASTERN DEPARTMENT

JAPAN

FJ1022/275

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FROM

Mr. Tomlinson (Washington)

To

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TOP SECRET

1075/187/51

BRITISH EMBASSY,
Washington, D.C.
28th March, 1951.

Dear Charles,

Thank you for your Top Secret letter of 22nd March (FJ 1022/143), dealing primarily with the implications of the conclusion of a Japanese peace treaty without Russian participation. I have discussed the various points raised with Allison.

2. United Nations Declaration of 1942

Allison agreed with the general line you suggest for countering any allegations the Russians may eventually make that this Declaration is being violated. He said that the situation which had now arisen was obviously not contemplated by the drafters of the 1942 Declaration. Any reasonable man would interpret that Declaration as meaning that the co-belligerents pledged themselves to go on fighting together until the enemy was defeated. It was however arguable that there would be a prima facie violation of that Declaration and it might conceivably be necessary at some stage to issue an explanatory statement.

3. The implications of Russia continuing in a state of war with Japan.

Allison said that your remarks on this subject were entirely on line with State Department thinking. In short, the State Department agree with us that any Russian decision about the time and place to get tough will not be influenced by our making a separate peace with Japan but will be decided on other grounds. Allison volunteered the interesting observation that the argument about the risks of making peace while the Soviet Union still continues in a state of war with Japan was one which those elements in the Pentagon who remain anxious to go as slowly as possible on the Japanese Peace Treaty question were continually making play with.

4. Termination of Far Eastern Commission and Allied Council

Allison agrees generally with the line taken in paragraphs 51 to 53 of C.P. (50) 323 on this problem. When I suggested it could perhaps be argued that the relevant section of the Terms of Reference of the Far Eastern Commission really contemplated the winding up of the Commission for reasons other than the conclusion of a treaty of peace, Allison said he entirely agreed.

5. United States authority to appoint a new Supreme Commander for the Allied Powers

Allison said that he thought that United States authority to appoint a new Supreme Commander derived from the Basic Post-Surrender policy for Japan approved by the Far Eastern Commission on June 19th 1947. In Part II of this policy decision under the heading "Military Occupation" the following sentence appears, "The occupation forces will be under the command of a Supreme Commander designated by the United States". I told Allison that I thought this was somewhat flimsy but I did not dispute the point with him. I hope that you will agree that our interest in this matter lies in helping the Americans to find the best possible

C.H. Johnston, Esq.,
Japan and Korea Department,

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justification for the action that they appear to be considering. We should hardly, I think, want to be responsible for prolonging General MacArthur's stay in Japan! On the other hand, I seriously doubt whether the Basic Post-Surrender policy, in spite of the fact that it is largely a reiteration of a much earlier document, should be regarded as the controlling document on this question. General MacArthur was designated Supreme Commander on the 14th August 1945 and the Presidential directive sent to General MacArthur on the 13th August 1945 begins by saying "In accordance with the agreement among the Governments of the United States, the Chinese Republic, the United Kingdom and the U.S.S.R. to designate a Supreme Commander for the Allied Powers for the purpose of enforcing the surrender of Japan you are hereby designated etc." I seem to recall having at one time done a piece of abortive research through the 1945 documents in an attempt to discover the precise nature of the agreement referred to. But in any case I suggest that the Americans should seek their authority in some much earlier document than the Basic Post-Surrender policy.

6. Territorial clauses of the treaty

What to do about the Kuriles and South Sakhalin is a knotty problem. The argument you use in your paragraph 7 (d) is a cogent one to which I had not previously given due weight. I have been discussing the problem with some of my Commonwealth colleagues and may have some further thoughts to communicate later. I was interested to know that you did not consider that the Habomai islands can be regarded as forming part of the Kuriles. Here again I think a case can be made out on both sides. I believe the Japanese regard the Habomai islands as forming part of the CHISHIMA RETTO and that they are occasionally referred to as the Lesser Kuriles. On the other hand Allison tells me that at various times in history when the Russians were in occupation of the Kuriles they never extended their control to the Habomai islands.

7. Japanese assets in neutral and ex-enemy countries

I told Allison that the omission of any reference to this subject in the United States draft treaty ought to be remedied. This was a subject which could not be left lying in the air. The peace treaty should at least provide for the relinquishment by Japan of these assets in favour of the powers in control of them. I said that I understood the United States desire to make the treaty as short as possible, but as their draft treaty went so far as to include reference to the disposition of the submarine cables between Japan and the ceded territories it could surely find room for an essential item of this kind. Allison said that he personally enitrely agreed and that he was not unhopeful that our views would be accepted.

8. Sino-Soviet treaty of 1950

The State Department line on this is very similar to your own. There is of course the additional point that we are not fighting Chinese Government forces in Korea but Chinese "volunteers".

9. I am copying this letter to Nichols in Moscow and Clutton in Tokyo.

Yours ever,

E.S. Tomlinson

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